

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

CASE OF USKOV AND OTHERS v. RUSSIA

(Applications nos. 58703/21 and 19 others –
see appended list)

JUDGMENT

STRASBOURG

16 May 2024

This judgment is final but it may be subject to editorial revision.



In the case of Uskov and Others v. Russia,

The European Court of Human Rights (Fifth Section), sitting as a Committee composed of:

María Elósegui*, President*,
Mattias Guyomar,
Kateřina Šimáčková*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 18 April 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023, and *Pivkina and Others v. Russia* (dec.), nos. 2134/23 and 6 others, § 46, 6 June 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the

proceedings under the Code of Administrative Offences (the CAO); and *Glukhin v. Russia,* no. 11519/20, §§ 64-91, 4 July 2023, concerning unjustified processing of the applicant's personal biometric data by using highly intrusive facial recognition technology in the proceedings under the Code of Administrative Offences, in order to identify, locate and arrest the applicant.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 10-11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 16 May 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	María Elósegui
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	58703/21 19/11/2021	**Anton Vyacheslavovich USKOV** 1977	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Tambov 23/01/2021	article 20.2 § 6.1 of CAO	administrative detention for 10 days	Tambov Regional Court 19/05/2021	Art. 8 (2) - restrictions on the right to private life of participants in public assemblies - use of facial recognition technology for the identification of the applicant as a participant of a rally and his subsequent conviction (raised on appeal)	5,000
2.	58747/21 11/11/2021	**Daniil Dmitriyevich MELNIK** 1991	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 19,000	Moscow City Court 11/05/2021		3,500
3.	58762/21 10/11/2021	**Yevgeniy Alekseyevich BORISOV** 2004	Borisov Oleg Vyacheslavovich Ulyanovsk	Rally "Free Navalnyy" Ulyanovsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 5,000	Ulyanovsk Regional Court 03/06/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 1.40 p.m. to 6.10 p.m. on 31/01/2021	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
4.	59029/21 11/11/2021	**Sergey Anatolyevich STARODUBTSEV** 1984	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 13/05/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.30 p.m. to 7.05 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
5.	59554/21 19/11/2021	**Fedor Mikhaylovich YELISEYEV** 2001	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 19/05/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11 a.m. to 9.00 p. m. on 02/02/2021; the applicant spent 2h30min in the police van, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
6.	61203/21 25/11/2021	**Ivan Viktorovich MEKHANOSHIN** 1997	Trutnev Matvey Sergeyevich Perm	Rally "Free Navalnyy" Perm 31/01/2021	article 20.2 § 5 of CAO	20 hours of community works	Perm Regional Court 11/06/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to a police station for the purpose of drawing up a record of administrative offence on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
7.	450/22 02/12/2021	**Gennadiy Dmitriyevich SITENKO** 1953	Sannikova Yelena Nikitichna Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 03/06/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.10 a.m. on 31/01/2021 to 00.45 a.m. on 01/02/2021; the applicant spent 3h30 in the police van, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
8.	866/22 15/12/2021	**Ilya Konstantinovich YERMAKOV** 2002	Filatchev Oleg Vladimirovich Moscow	Rally "Free Navalnyy" Kaluga 21/04/2021	article 20.2.2. § 1 of CAO	fine of RUB 12,000	Kaluga Regional Court 16/06/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to a police station for the purpose of drawing up a record of administrative offence on 21/04/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
9.	1805/22 09/12/2021	**Mikhail Andreyevich LITOMIN** 1990	Balog Natalya Andreyevna Krasnoyarsk	Rally "Free Navalnyy" Krasnoyarsk 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnoyarsk Regional Court 10/06/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.15 p.m. to 8.35 p.m. on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
10.	44513/22 22/08/2022	**Margarita Igorevna LEVASHOVA** 1996	Kulikov Sergey Sergeyevich Nizhniy Novgorod	Anti-war protest Nizhniy Novgorod 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 18/05/2022	Art. 5 (1) - unlawful deprivation of liberty -escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.50 p.m. on 06/03/2022 to 5.00 p.m. on 07/03/2022, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
11.	46152/22 08/09/2022	**Natalya Igorevna NEVAR** 1991	Kulikov Sergey Sergeyevich Nizhniy Novgorod	Anti-war protest Nizhniy Novgorod 06/03/2022	article 20.2 § 6.1 of CAO	administrative detention of 3 days	Nizhniy Novgorod Regional Court 18/05/2022	Art. 5 (1) - unlawful deprivation of liberty - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.00 p.m. on 06/03/2022 to 5.00 p.m. on 07/03/2022, hearing in the applicant's administrative-offence case; the applicant spent 3 hours in the police van,	5,000

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								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	
12.	46155/22 15/09/2022	**Aygul Ayratovna GADELSHINA** 2003	Mikhaylova Varvara Dmitriyevna St Petersburg	Anti-war protest Ufa 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 18,000	Supreme Court of the Bashkortostan Republic 16/05/2022	Art. 5 (1) - unlawful deprivation of liberty - escorting to a police station for the purpose of drawing up a record of administrative offence on 27/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
13.	46199/22 13/09/2022	**Sergey Aleksandrovich AREFYEV** 1989	Kulikov Sergey Sergeyevich Nizhniy Novgorod	Anti-war protest Nizhniy Novgorod 06/03/2022	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 18/05/2022	Art. 5 (1) - unlawful deprivation of liberty escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.00 p.m. on 06/03/2022 to 6.30 p.m. on 07/03/2022, hearing in the applicant's administrative-offence case; the applicant spent 3 hours in the police van, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
14.	46752/22 14/09/2022	**Yekaterina Pavlovna BEZHENAR** 1996	Gerasimova Yekaterina Viktorovna St Petersburg	Anti-war rally St Petersburg 27/02/2022	article 20.2 § 6.1 of CAO	fine of RUB 10,000	St Petersburg City Court 31/05/2022	Art. 5 (1) - unlawful deprivation of liberty - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.30 p.m. on 27/02/2022 to 9.00 a.m. on 28/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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15.	46754/22 14/09/2022	**Yelizaveta Vasilyevna SPIRIDONOVA** 2000	Gerasimova Yekaterina Viktorovna St Petersburg	Anti-war rally St Petersburg 27/02/2022	article 20.2 § 6.1 of CAO	fine of RUB 10,000	St Petersburg City Court 31/05/2022	Art. 5 (1) - unlawful deprivation of liberty - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 7.15 p.m. on 27/02/2022 to 8.00 a.m. on 28/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
16.	48290/22 17/09/2022	**Mikhail Gennadyevich STUPKO** 1987	Lapuzin Aleksey Sergeyevich Samara	Anti-war protest Samara 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Samara Regional Court 19/05/2022	Art. 5 (1) - unlawful deprivation of liberty - escorting to a police station for the purpose of drawing up a record of administrative offence on 27/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
17.	48306/22 15/09/2022	**Yekaterina Andreyevna TKACHENKO** 1995	Podolskiy Sergey Viktorovich St Petersburg	Anti-war protest St Petersburg 02/04/2022	article 20.2 § 6.1 of CAO	fine of RUB 12,000	St Petersburg City Court 31/05/2022	Art. 5 (1) - unlawful deprivation of liberty - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.15 p.m. on 02/04/2022 to 03/04/2022, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
18.	48502/22 30/09/2022	**Anastasiya Konstantinovna GORODNITSINA** 2002	Lapuzin Aleksey Sergeyevich Samara	Anti-war rally Samara 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Samara Regional Court 02/06/2022	Art. 5 (1) - unlawful deprivation of liberty - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.00 p.m. to 8.00 p.m. on 27/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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19.	48535/22 01/10/2022	**Sergey Sergeyevich TYURIN** 1987	Lapuzin Aleksey Sergeyevich Samara	Anti-war rally Samara 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Samara Regional Court 02/06/2022	Art. 5 (1) - unlawful deprivation of liberty - escorting to a police station for the purpose of drawing up a record of administrative offence, from 2.25 p.m. to an unspecified time, at least 3.25 p.m., on 06/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
20.	50599/22 27/09/2022	**Marina Sergeyevna VOLNUSHKINA** 1963	Sozonov Ruslan Vladimirovich Nizhniy Novgorod	Anti-war rally Nizhniy Novgorod 24/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 01/06/2022		3,500

[1] Plus any tax that may be chargeable to the applicants.